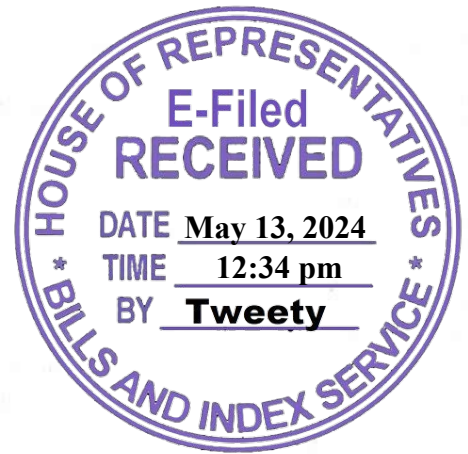


Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City, Metro Manila

NINETEENTH CONGRESS
Second Regular Session

HOUSE BILL NO. **10385**



Introduced by Representatives Bryan B. Revilla, Lani Mercado-Revilla, and Ramon Jolo Revilla III

EXPLANATORY NOTE

Artificial Intelligence, defined by the Organization for Economic Co-operation and Development as the ability of machines and systems to acquire and apply knowledge and to carry out intelligent behavior, has been existing for decades. It is only recently that people around the world are able to more clearly grasp its impact on their lives and livelihood. At present, there is a lack of national policy on artificial intelligence.

In recent years, both the literature and emerging events abroad have highlighted how the rise of Artificial Intelligence (AI) have negatively impacted ordinary workers, to the extent of AI-powered tools replacing humans in the workplace. The resulting job loss is detrimental to the workers and their families and will potentially widen the income gap. Emerging technologies have also been exploited by criminal elements in the society. Just recently, no less than the voice of President Ferdinand R. Marcos, Jr. was maliciously used to produce a deepfake video supposedly issuing a directive to attack China.

This lacuna in public policy must be immediately addressed. Because of the stakes, there is an urgent necessity to enact an official national policy that will balance the pursuit of encouraging the development of emerging technologies like those powered by artificial intelligence for common good and the need to protect the Filipinos from its potential negative impact. This bill fills the gap in governance to better the lives of the people by ensuring that they reap the benefits of technological innovations while remaining safe from its harmful use.

In view of the foregoing, the passage of this bill is earnestly sought.


REP. BRYAN B. REVILLA
AGIMAT Party-list


REP. LANI MERCADO-REVILLA
Representative, 2nd District of Cavite


REP. RAMON JOLO B. REVILLA III
Representative, 1st District of Cavite

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AN ACT
PROMOTING THE DEVELOPMENT AND REGULATION OF ARTIFICIAL
INTELLIGENCE IN THE PHILIPPINES

SECTION 1. *Short Title.* – This Act shall be known as the "AI Regulation Act."

SEC. 2. *Declaration of Policy.* – The State recognizes the role of technological development, including artificial intelligence, to national progress. It shall also endeavor to protect and promote the rights of workers, as a primary social economic force, and their welfare, especially amidst the advent of automation and roboticization in the workplace that may lead to the displacement of a portion of the workforce.

To this end, the State shall regulate the utilization of artificial intelligence to ensure that the country reaps its benefits and to protect workers from its potentially negative consequences.

SEC. 3. *Artificial Intelligence Bureau.* – In pursuit of the objectives of this Act, there is hereby created an Artificial Intelligence Bureau within the Department of Information and Communications Technology (DICT), which shall exercise the following powers and functions:

- a.) Develop a national AI development and regulation strategy;
- b.) Spearhead the conduct of research and development activities to promote the advancement of AI technology in the Philippines;
- c.) Develop a framework of governance over the introduction of artificial intelligence-powered systems in public and private sectors, the academe, and the workplace;
- d.) Formulate the necessary rules and regulations to prevent the displacement of workers due to artificial intelligence while ensuring that the country benefits from the positive consequences of such technological advancements;

- e.) Conduct consultations with concerned government agencies, the business sector, workers, the academe, and other stakeholders, in order to craft relevant and enforceable rules and regulations;
- f.) Monitor the compliance of firms using AI technologies with the principles and ethical guidelines on the use of the same;
- g.) Protect the rights and welfare of all people affected by AI technologies;
- h.) Call upon other government agencies to help enforce this Act and its implementing rules and regulations; and
- i.) Report to Congress regarding the status of the implementation of this Act.

SEC. 4. Principles of AI Governance. – The following shall constitute the principles of AI Governance in the Philippines, on the basis of which, the Bureau shall craft specific policies, rules, and regulations.

- a.) Respect, protection, and promotion of human dignity and rights is essential throughout the life cycle of AI systems. Human dignity relates to the recognition of the intrinsic and equal worth of each individual human being.
- b.) No human being or human community should be harmed or subordinated, whether physically, economically, socially, politically, culturally, or mentally during any phase of the life cycle of AI systems.
- c.) Access to emerging technologies should be democratized. The State shall drive public awareness, knowledge, and understanding of AI technologies, including their benefits and risks.
- d.) AI should serve all people and emergent tools, products, and technologies that has and use AI should be relevant to the contexts and priorities of the Filipino nation.
- e.) Data privacy is sacrosanct. Personal data shall be protected and used responsibly when utilized to explore and experiment with AI.

SEC. 5. Roadmap. – Within one year from the effectivity of this Act, the Bureau shall publish and submit to Congress a roadmap for the government regarding the development and ethical use of Artificial Intelligence in a way that protects the rights of Filipinos and promote their welfare through such technological advancements. The document shall set clear benchmarks that government agencies must work towards in order to attain the objectives of this Act.

SEC. 6. *Appropriation.* – The amount necessary for the implementation of this Act, including the creation and operation of the Artificial Intelligence Bureau, shall be included in the annual General Appropriations Act.

SEC. 7. *Implementing Rules and Regulations.* – Within ninety (90) days from the effectivity of this Act, the DICT shall promulgate the necessary implementing rules and regulations of this Act for the implementation of this Act.

SEC. 8. *Separability Clause.* – If any portion or provision of this Act is declared unconstitutional, the remainder of this Act or any provisions not affected thereby shall remain in force and effect.

SEC. 9. *Repealing Clause.* – All laws, decrees, orders and rules and regulations contrary to or inconsistent with the provisions of this Act are hereby repealed or amended accordingly.

SEC. 10. *Effectivity Clause.* – This Act shall take effect fifteen (15) days after its publication in the Official Gazette.

Approved,